

Opinion of THOMAS, J.

son v. Creighton, 483 U. S. 635, 645 (1987) (discussing *Harlow v. Fitzgerald*, 457 U. S. 800 (1982)). Instead of asking whether the common law in 1871 would have accorded immunity to an officer for a tort analogous to the plaintiff's claim under § 1983, we instead grant immunity to any officer whose conduct “does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.” *Mullenix v. Luna*, 577 U. S. 7, 11 (2015) (*per curiam*) (internal quotation marks omitted); *Taylor v. Barkes*, 575 U. S. 822, 825 (2015) (*per curiam*) (a Government official is liable under the 1871 Act only if “‘existing precedent . . . placed the statutory or constitutional question beyond debate’” (quoting *Ashcroft v. al-Kidd*, 563 U. S. 731, 741 (2011))). We apply this “clearly established” standard “across the board” and without regard to “the precise nature of the various officials’ duties or the precise character of the particular rights alleged to have been violated.” *Anderson*, *supra*, at 641–643 (internal quotation marks omitted).^{*} We have not attempted to locate that standard in the common law as it existed in 1871, however, and some evidence supports the conclusion that common-law immunity as it existed in 1871 looked quite different from our current doctrine. See generally Baude, *Is Qualified Immunity Unlawful?* 106 Cal. L. Rev. 45, 51–62 (2018).

Because our analysis is no longer grounded in the common-law backdrop against which Congress enacted the 1871 Act, we are no longer engaged in “interpret[ing] the intent of Congress in enacting” the Act. *Malley*, 475 U. S., at 342; see *Burns*, *supra*, at 493. Our qualified immunity precedents instead represent precisely the sort of “freewheeling policy choice[s]” that we have previously disclaimed the power to

^{*}Although we first formulated the “clearly established” standard in *Bivens* cases like *Harlow* and *Anderson*, we have imported that standard directly into our 1871 Act cases. See, e. g., *Pearson v. Callahan*, 555 U. S. 223, 243–244 (2009) (applying the clearly established standard to a § 1983 claim).